BLUE MELON FIELD (PRIVATE) LIMITED
versus
BAYTANY (PRIVATE) LIMITED
and
A & S TOTAL COMMUNICATIONS (PRIVATE) LIMITED
and
TIRIVENYU MATHIAS MUTEMA N.O.
Cited in his capacity as the Conveyancer
and
REGISTRAR OF DEEDS FOR HARARE
and
ALBERT CHITAUNHIKE N.O.

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 16 September 2025 & 7 April 2026

Application for rescission of judgment

T. Zhuwarara, for the applicant
E. Mubaiwa for the respondent

DUBE-BANDA J:

[1] This is an application for rescission of judgment in terms of r 29(1) of the High Court Rules, 2021. The applicant seeks an order couched in the following terms:

i. That judgment granted in this court in case number HCH 5059/24 on the 10th February 2025 by the Honourable Justice Musithu be and is hereby rescinded.
ii. There is no order as to costs unless this matter is opposed in which instance costs to be borne by the opposing party on a legal practitioner and client scale.

[2] For convenience and where the context permits, the parties to this litigation shall be referred to in their names. The application is opposed by the first respondent, Baytany (Private) Limited. The second, third, fourth, and fifth respondents neither filed an opposition nor sought to participate in the hearing. It is safe to conclude that they took a position to abide by the decision of the court.

[3] These background facts provide the context. On 12 November 2024, Baytany (Private) Limited filed an application in case number HCH 5059/24 seeking a cancellation of a deed of transfer in terms of s 8 of the Deeds Registries Act [*Chapter 20:05*]. The respondents in HCH 5059/24 were the following: A & S Communications Private Limited; Blue Melon Field (Private) Limited; Tirivenyu Mathius Mutema; Registrar of Deeds; and Albert Chitaunhike N.O. At the center of the litigation in HCH 5059/24 was an immovable property being Stand 173, Amby Township, Harare ("the stand"). In HCH 5059/24, Baytany (Private) Limited contended, in summary, that it was the lawful registered owner of the property, and that it was divested of its rights and interest in the property through unlawful means perpetrated by a network of fraudsters. It sought the cancellation of the deed of transfer in favour of Blue Melon Field (Private) Limited, the applicant herein. As proof of service of the application on Blue Melon Filed (Private) Limited, Baytany (Private) Limited placed before the court a Certificate of Service showing that the application was served on 14 November 2024 at 8:24 am on one Clifford Hokonya, a responsible person. The application was not opposed, and this court (per MUSITHU J) on 10 February 2025 granted a default judgment in the following terms:

i. The application for cancellation of Deed of Transfer Numbers 3754/24 and 4900/22 be and is hereby granted.
ii. The deed of transfer numbers 5211/1986 which was registered in favour of Baytany (Private) Limited before the fraudulent transfers, be and is hereby revived.
iii. The 4th respondent be and is hereby ordered to issue a certificate of registered title confirming the applicant as the lawful owner of a certain 2,4538 hectares of land called stand number 173 Amby Township situate in the district of Salisbury, and a certain 6,3126 hectares of land including vested roadway called Amby Township of 8 of Bingley, situate in the District of Salisbury all held under deed of transfer number 5211/1986 within five (5) days of this order.
iv. The 1st and 2nd respondents are hereby ordered to pay, jointly and severally, the one paying the other to be absolved, costs of suit on a legal practitioner and client scale.

[4] It is the above order that Blue Melon Field (Private) Limited, in this application seeks to be rescinded in terms of r 29(1) of the High Court Rules, 2021.

[5] The application is opposed both *in limine* and on the merits. I heard both points *in limine* and the merits, with a rider that should any point *in limine* be dispositive of the matter, the judgment will not deal with the merits, however, should all the points *in limine* be refused, the matter will therefore be resolved on the merits. In the opposing affidavit and heads of argument, the first respondent raised several points *in limine*. These are: (a) It was contended that the application is fatally defective in that the founding affidavit predates the court order sought to be rescinded and the events sitting at the root of the matter. In addition, it was argued that this shows that there was no valid attestation by the commissioner of oaths and the deponent. (b) It was submitted that the application was not properly authorized in that the board resolution postdates the founding affidavit, and yet, on its terms, gives prospective authority and not ratification. (c) It was contended that the application is invalid in that it does not specifically plead the law in terms of which it was filed or brought to court. It does not specify the exact provision it is sitting on in r 29(1), i.e., whether it is paragraph (a), (b), or (c) of the rule. It was submitted that the lack of specificity in pleading the law relied upon is such that the court cannot attune itself to its jurisdiction. (d) It was contended further that the application is incompetent in that whilst it alleges that it is in terms of r 29(1), it proceeds to plead matters which are in excess of or incompatible with the requirement of that rule i.e., it deals with prospects of success and balance of convenience which would be relevant under r 27. In addition, it was contended that while this adds to the lack of specificity and general confusion in the application, it also evinces the absence of a proper cause of action. (e) Lastly, it was argued *in limine* that the application was out of time in that the default judgment sought to be rescinded was granted on 10 February 2025 and, by presumption of law, the applicant became aware of it on 12 February 2025. It was further submitted that no evidence that rebuts this presumption was given, rendering the application out of time allowed by the rules of court. It was submitted that, in the absence of condonation and extension of time, there is no valid application before court.

[6] The first respondent sought that the points *in limine* be upheld and the application be struck off the roll with costs on the punitive scale.

[7] The first point *in limine* to consider is whether the founding affidavit is fatally defective. This is so because the founding affidavit is the entrance or the gateway to the application, without a valid founding affidavit, there would be no application for consideration before the court. In support of this point *in limine*, Mr *Mubaiwa,* counsel for the first respondent, Baytany (Private) Limited argued that the founding affidavit predates the order that is sought to be rescinded. It is common cause or not disputed that the order sought to be rescinded was granted on 10 February 2025, but the founding affidavit is dated 5 May 2024. As will shown later in this judgment, the applicant's legal practitioner deposed to an affidavit taking responsibility for what is referred to as the wrong date in the founding affidavit. Mr *Mubaiwa* submitted that the issue of the date concerns not the attorney's draftsmanship but the manner in which the oath was taken and the role of the commissioner of oaths. Counsel argued that the affidavit must carry the date on which the deponent appeared before the commissioner of oaths, and such date ought to be inscribed by the commissioner of oaths and not by the drawer or settlor of the affidavit. It was submitted that in *casu* the date was inserted by the applicant's legal practitioner, and not the commissioner of oaths. Counsel submitted that the founding affidavit is fatally defective and the point *in limine* ought to be upheld, and the application struck off the roll with costs on a punitive scale.

[8] *Per Contra*, the applicant submitted that the issue of the date is explained in the answering affidavit and the supporting affidavit of the legal practitioner. It was argued that the typographical error, though regrettable, must not detract the court from dealing with this application. In his oral submissions, Mr *Zhuwarara,* counsel for the applicant, submitted that no prejudice is alleged by the first respondent, and the court must overlook this typographical error. Counsel sought that the point *in limine* be dismissed and the matter be determined on the merits.

[9] The jurisprudence in this jurisdiction is that for an affidavit to be valid, the deponent must take the oath in the presence of the commissioner. The commissioner must append his or her signature on the statement in the presence of the deponent, and the commissioner must also endorse the date on which the oath was administered, and that these acts must occur contemporaneously. See *Ndoro & Anor* v *Conjugal Enterprises (Private) Limited & Anor* HH 814-22, *State* v *Hurle & Ors* (2) 1998 (2) ZLR 42. In *Ariston Management Services* v *Econet*

Wireless Zimbabwe Limited S 123-23, the Supreme Court cited with approval the decision in *Mandishayike* v *Sithole* HH 798-15 and held thus:

> "In the Mandishaya case (sic) the court remarked that the deponent of an affidavit must take the oath in the presence of the Commissioner. Equally, the Commissioner must append his or her signature on the statement in the presence of the deponent. The court went on to say that the Commissioner must also endorse the date on which the oath was administered and that those acts must occur contemporaneously. ……..The reason behind that requirement is for the court to be satisfied that the oath was administered at a given date in the presence of both the deponent and the Commissioner. Without the date, the court may never be able to ascertain if the oath was properly administered in accordance with the law."

[10] In *Sheng An Mining (Pvt) Ltd* v *Daka & Anor* HB-65-24, the court also cited, with approval the decision in *Mandishayike* v *Sithole* HH 798-15, where the court said: -

> "An affidavit is a written statement made on oath before a Commissioner of Oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the Commissioner of Oaths and must append his or her signature to the document in the presence of such Commissioner. Equally the Commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The Commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."
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> The court went on to state that:-
>
> "What comes out of precedent is that an affidavit must have a date on which the oath was administered. It is insufficient that the affidavit might have a date on which the deponent signed it."

[11] KABASA J in *Darcal (Private) Limited* v *Minister Of Lands, Fisheries, Water And Rural Development N.O & Others* (526 Of 2025) [2026] Zwbhc 14 (19 February 2026) puts it thus:

> "That said, I am persuaded by counsel for the respondent's submissions. The absence of the date on which the oath was administered, which date ought to have been reflected on the Commissioner's signature fails to show that the deponent took the oath on the date the Commissioner administered such oath. The contemporaneity is not ascertainable and the respondents are within their rights to question the validity of the application in light of the malady afflicting the founding affidavit."

[12] For completeness, it is important to quote directly from the supporting affidavit of the legal practitioner of the applicant, he or she says:

> "I confirm same as being a typographical error made on my part as the numbers 4 and 5 are adjacent and due to the volume of papers needed to be filed urgently in such a grave matter, the error escaped notice, and for which I apologise to my colleagues and the attending judge.
>
> It will be noted that all resolutions, and indexes and filling bears the date of the 5th May 2025 and it was merely on the founding affidavit that I made the error correctly noted.
>
> Again I reiterate apology over the oversight and typographical error which was not picked up by anyone."

[13] Mr *Mubaiwa* submitted that the supporting affidavit shows that the date was interposed not by the commissioner, but by the legal practitioner. It was argued that this circumstance shows that there is no telling when the deponent appeared before the commissioner of oaths. It was argued that "therein lies the defect." I agree. It is clear that the applicant's legal practitioner did not understand the import of this point *in limine*. I must state though, that Mr *Zhuwarara* who argued the case for the applicant understood the import of this point *in limine* and argued against it the best he could on the facts of this case. Even if one were to accept that it was indeed a typographical error, such will just be cold comfort to the applicant. It is so because the problem remains, it is that the date on the affidavit was endorsed by the legal practitioner of the applicant, not the commissioner, as required by the law. The supporting affidavit shows that the date on the affidavit was inserted at the office of the legal practitioner. There is no evidence that the commissioner administered the oath at the office of the applicant's legal practitioners. The law requires that the deponent appear physically before the commissioner of oaths and that the commissioner inserts the date he or she administered the oath. This is what the principle of contemporaneity requires, no more and no less. Without a supporting affidavit from the commissioner and a supplementary affidavit from the deponent explaining the circumstances under which the oath was administered, it cannot be said that it was administered in terms of the requirements of the law. The submission by Mr *Zhuwarara* that the first respondent suffered no prejudice is of no consequence. It is not about prejudice to the litigant. It is for the court to be satisfied that

what is before it is a valid affidavit, not an unsworn statement. In addition, the submission, that the court must ignore this point *in limine* and proceeds to deal with the merits of the matter is of no moment. The absence of a valid founding affidavit goes to the root of the matter. It cannot be ignored. As stated above, a valid founding affidavit is the gateway or entrance to the application. Without it there will be no application.

[14] In conclusion, on the facts of this case, it cannot be said that the deponent to the statement appeared before the commissioner of oaths, took an oath, and appended his or her signature on the document in the presence of such commissioner. It can also not be said that the commissioner administered the oath in accordance with the law and appended his or her signature on the statement in the presence of the deponent. It cannot be said that the commissioner endorsed the date on which the oath was so administered. The principle of contemporaneity has not been complied with in this case. In fact, this is not an affidavit, it is just an unsworn statement. This is not a matter of elevating form over substance. It is a matter of law. In fact, r 59(1) says:

> "A court application shall be in Form No. 23 and shall be supported by one or more affidavits setting out the facts upon which the applicant relies:……"

[15] Therefore, without a valid founding affidavit, there is no application. In the circumstances, the point *in limine* has merit and must be upheld. It is for these reasons that this application must be struck off the roll. In view of the finding that the founding affidavit is invalid, no useful purpose will be served in considering the remaining points *in limine*.

[16] The first respondent sought costs on a legal practitioner and client scale. It is trite that the scale of legal practitioner and client is an extraordinary one which should be reserved for cases where it can be found that a litigant conducted itself in a clear and indubitably vexatious and reprehensible manner. Such an award is very exceptional and is intended to be very punitive and indicative of extreme opprobrium. It should be in relation to conduct that is clearly and extremely scandalous or objectionable that these exceptional costs are awarded. See *Rallings Enterprises (Pvt) Ltd* v *Luwo & Ors* 2020 (2) ZLR 51 (H). In *casu*, no case has been made for costs on a legal practitioner and client scale.

In the result, it is ordered as follows:

i. The point *in limine* that the founding affidavit is fatally defective and therefore invalid is upheld. In the result, there is no valid application before court.

ii. The application is struck off the roll with costs on a party and party scale.

Whatman and Stewart, applicant's legal practitioners
M.D. Muchada Legal Practice, 1st respondent's legal practitioners